

DARRELL RAMOS,)
)
)
Plaintiff,)
)
)
-Against-)
)
)
CITY OF NEW YORK and POLICE)
OFFICER DONAL SCHUMACHER,)
POLICE OFFICER MILLER, POLICE)
OFFICER JOHN DOE NO. 1,)
DETECTIVE DOUGLASS W. CARR,)
DETECTIVE JOHN DOE NO. 1,)
DETECTIVE JOHN DOE NO. 2,)
POLICE OFFICER JOHN DOE NO. 2, and)
POLICE OFFICERS JOHN DOE NO. 3,)
)
Defendants.)
)

Index No.: _____

COMPLAINT

1 of 11

SUMMARY OF CLAIMS

1. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for malicious prosecution for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008, a 2016 domestic violation prosecution of the plaintiff based upon defendants' criminal complaint under Arrest No. K16640707, claiming that Mr. Ramos harassed one Regina Thompson where defendants commenced a criminal proceeding against Mr. Ramos, that proceeding was terminated in Mr. Ramos' favor, there was no probable cause for the proceeding, and defendants acted with malice, perverting proper legal procedures implicating Mr. Ramos' personal liberty and privacy interests under the 14th Amendment.

2. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for malicious criminal abuse of process for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008, a 2016 domestic violation prosecution of the plaintiff based upon defendants' criminal complaint under Arrest No. K16640707, claiming that Mr. Ramos harassed one Regina Thompson where defendants employed regularly issued legal process against Mr. Ramos, with the intent to harm Mr. Ramos without excuse or justification, and in order to obtain a collateral objective outside the legitimate ends of process, violating Mr. Ramos' 14th Amendment right to due process.

3. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for false arrest and imprisonment for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008, a 2016 domestic violation prosecution of the plaintiff based upon defendants' criminal complaint under Arrest No. K16640707, claiming that Mr. Ramos harassed one Regina Thompson where defendants intended to confine Mr. Ramos, Mr. Ramos was conscious of the

confinement, Mr. Ramos did not consent to the confinement, and the confinement was not otherwise privileged, unreasonably seizing Mr. Ramos in violation of the 14th Amendment.

4. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for pain and suffering as a result of the defendants' malicious prosecutions, malicious criminal prosecutions, and false arrest and imprisonment for defendants' prosecution in Kings County Criminal Case Index No. 2016KN033008, a 2016 domestic violation prosecution of the plaintiff based upon defendants' criminal complaint under Arrest No. K16640707, claiming that Mr. Ramos harassed one Regina Thompson.

5. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for criminal malicious abuse of process for defendants' prosecution in Kings County Criminal Case Index No. 2016KN022057, for Mr. Ramos' alleged driving while under the influence based upon defendants' criminal complaint under Arrest No. 2016-081-01845, claiming that Mr. Ramos had been operating a motor vehicle while driving under the influence where defendants employed regularly issued legal process against Mr. Ramos, with the intent to harm Mr. Ramos without excuse or justification, and in order to obtain a collateral objective outside the legitimate ends of process, violating Mr. Ramos' 14th Amendment right to due process.

6. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for false arrest and imprisonment for defendants' prosecution in Kings County Criminal Case Index No. 2016KN022057, for Mr. Ramos' alleged driving while under the influence based upon defendants' criminal complaint under Arrest No. 2016-081-01845, claiming that Mr. Ramos had been operating a motor vehicle while driving under the influence where defendants intended to confine Mr. Ramos, Mr. Ramos was conscious of the confinement, Mr. Ramos did not consent to

the confinement, and the confinement was not otherwise privileged, unreasonably seizing Mr. Ramos in violation of the 14th Amendment.

7. Plaintiff brings claims against defendants pursuant 42 U.S.C. § 1983 for malicious prosecution for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008, a 2016 domestic violation prosecution of the plaintiff based upon defendants' criminal complaint under Arrest No. K16640707, claiming that Mr. Ramos harassed one Regina Thompson where defendants commenced a criminal proceeding against Mr. Ramos, that proceeding was terminated in Mr. Ramos' favor, there was no probable cause for the proceeding, and defendants acted with malice, perverting proper legal procedures implicating Mr. Ramos' personal liberty and privacy interests under the 14th Amendment.

8. Plaintiff brings a claim against defendants pursuant 42 U.S.C. § 1983 for pain and suffering as a result of the defendants' malicious prosecutions, malicious criminal prosecutions, and false arrest and imprisonment for defendants' prosecution in Kings County Criminal Case Index No. 2016KN022057, for allegedly driving while under the influence based upon defendants' criminal complaint under Arrest No. 2016-081-01845.

I.) FACTUAL BACKGROUND

(A) Mr. Ramos' DUI Prosecution

9. On April 12, 2016, Mr. Ramos was arrested and charged with having allegedly operated a motor vehicle under the influence of alcohol.

10. According to the defendants, they were in route to an emergency, using their "Emergency Turret Lights," when Mr. Ramos allegedly made a U-turn in front of the defendants' allegedly on-coming vehicle.

11. Therefore, defendants testified that they simply decided to abort their emergency run to an emergency to see why Mr. Ramos allegedly made a U-turn in front of their emergency vehicle.

12. According to the report Defendant Police Officer Schumacher prepared the criminal complaint, writing in part, "I asked Deft [sic] for license, insurance and registration at which time driver stated 'I don't have any of it, Im [sic] on the job,' I asked driver for work I.D. Driver said I don't have it and became very aggressive."

13. Upon going forward to trial Defendant, Police Officer Miller originally testified that his and partner Defendant Officer Schumacher's statements were independently prepared.

14. However, when confronted that his and Defendant Police Officer Schumacher's statements, as contained in the Officers' respective memo books were identical, Defendant Police Officer Miller admitted that his earlier statements that each Officer prepared his own statement was untrue.

15. The Officers conceded to having fabricated a story of Mr. Ramos' alleged driving under the influence.

16. Therefore, the jury acquitted Mr. Ramos of all charges.

(B) Domestic Violence Prosecution

17. On June 2, 2016, Mr. Ramos was arrested and charged with aggravated harassment of Regina Thompson.

18. In a supplemental complaint, defendants' generated complaint reads "On May 21, 2016 Deft. did contact the victim's cellphone and he threaten [sic] to blow her house and car up. [Complaining victim] is in fear of her safety.

19. In the original complaint defendants generated, defendants state in pertinent part, that Mr. Ramos' alleged multiple "threats include wanting to blow car [sic] and wanting to kill her.

20. Upon going forward to trial, the prosecution's case was dismissed after presenting its case on the basis that the evidence presented by the people did not make out a case for the crimes charged.

(II) CAUSES OF ACTION AND RELEVANT FACTUAL ALLEGATIONS

FIRST CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for malicious prosecution for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008.

21. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs "1" through "20" above.

22. Defendants commenced the underlying proceeding against Mr. Ramos for allegedly harassing Regina Thompson.

23. The underlying proceedings terminated in Mr. Ramos' favor when the trial judge entered a trial order of dismissal in that none of the allegations presented by the District Attorney were sufficient to make out a claim for the crimes charged.

24. There was never any probable cause for the crimes charged as Ms. Thompson's trial testimony established that she was never in any fear.

25. The defendants lied when they claimed that Ms. Thompson was in the requisite fear for purposes of making out the underlying criminal charges.

SECOND CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for Criminal abuse of process for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008.

26. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “25” above.

27. Defendants employed regularly issued legal process against Mr. Ramos, and in doing so intended to harm Mr. Ramos.

28. Defendants’ employment of regularly issued legal process was without excuse or justification as defendants fabricated the claimed fear for purposes of charging Mr. Ramos with the underlying charges.

29. Defendants intended to convict Mr. Ramos who was innocent of the underlying allegations, violating Mr. Ramos’ 14th Amendment liberty.

THIRD CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for false arrest and imprisonment for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008.

30. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “29” above.

31. In arresting Mr. Ramos in the underlying proceeding, the defendants intended to confine Mr. Ramos.

32. Mr. Ramos was conscious of the confinement in the underlying proceeding and did not consent to that confinement.

33. Mr. Ramos' confinement was not otherwise privileged where defendants' fabricated the requisite claims (i.e., fear and safety), thereby unreasonably seizing Mr. Ramos in violation of the 14th Amendment.

FOURTH CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for pain and suffering for defendants prosecution in Kings County Criminal Case Index No. 2016KN033008.

34. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs "1" through "33" above.

35. As a result of the defendants' prosecution, he was suspended from his place of employment and remained suspended without pay.

36. Mr. Ramos' lack of income and health care pushed Mr. Ramos to the brink of homelessness, and without healthcare.

FIFTH CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for malicious prosecution for defendants prosecution in Kings County Criminal Case Index No. 2016KN022057.

37. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs "1" through "36" above.

38. Defendants commenced the underlying proceeding against Mr. Ramos for allegedly driving under the influence.

39. The underlying proceedings terminated in Mr. Ramos' favor when the jury acquitted Mr. Ramos of all the charges.

40. There was never any probable cause for the crimes charged as defendants fabricated their story of Mr. Ramos allegedly having driven under the influence.

SIXTH CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for Criminal abuse of process for defendants prosecution in Kings County Criminal Case Index No. 2016KN022057.

41. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “40” above.

42. Defendants employed regularly issued legal process against Mr. Ramos, and in doing so intended to harm Mr. Ramos.

43. Defendants’ employment of regularly issued legal process was without excuse or justification as defendants fabricated the claimed fear for purposes of charging Mr. Ramos with the underlying charges.

44. Defendants intended to convict Mr. Ramos who was innocent of the underlying allegations, violating Mr. Ramos’ 14th Amendment liberty.

SEVENTH CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for false arrest and imprisonment for defendants prosecution in Kings County Criminal Case Index No. 2016KN022057.

45. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs “1” through “44” above.

46. In arresting Mr. Ramos in the underlying proceeding, the defendants intended to confine Mr. Ramos.

47. Mr. Ramos was conscious of the confinement in the underlying proceeding and did not consent to that confinement.

48. Mr. Ramos' confinement was not otherwise privileged where defendants' fabricated the requisite claims, thereby unreasonably seizing Mr. Ramos in violation of the 14th Amendment.

FOURTH CAUSE OF ACTION

Plaintiff brings a claim against defendants pursuant to 42 U.S.C. § 1983 for pain and suffering for defendants prosecution in Kings County Criminal Case Index No. 2016KN033057.

49. Plaintiff repeats and restates as if stated herein all averments set forth in Paragraphs "1" through "48" above.

50. As a result of the defendants' prosecution, he was suspended from his place of employment and remained suspended without pay.

51. Mr. Ramos' lack of income and health care pushed Mr. Ramos to the brink of homelessness, and without healthcare.

JURISDICTION AND VENUE

52. The claims asserted herein arise under state law.

53. The location is this judicial district where the acts in question occurred or originated.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests relief and judgment, as follows:

- (a) Awarding compensatory and punitive damages to be proved at trial;
- (b) Awarding extraordinary, equitable and/or injunctive relief as permitted by law, equity and the state law, including moving expenses to plaintiffs;
- (c) Awarding all the plaintiff reasonable costs and expenses incurred in this action, including counsel fees and expert fees;
- (d) Such other and further relief as this Court may deem just and proper.

DEMAND FOR JURY TRIAL

Plaintiffs hereby demand a jury trial.

Dated: New Rochelle, New York
April 9, 2019

CIVIL RIGHTS CONSORTIUM, INC.
LEGAL DIVISION
ATTORNEYS FOR THE PLAINTIFF

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